Insertion of new section 18A.

93. After section 18 of the Customs Act, the following section shall be inserted, namely:—

"18A. *Voluntary revision of entry, post clearance.*—(1) Notwithstanding anything contained in section 149, the importer or exporter of the goods, after the clearance, may revise an entry already made in relation to the goods, in such form and manner, within such time and subject to such conditions as may be prescribed.

(*2*) On revising the entry under sub-section (*1*), the importer or exporter of the goods shall self-assess the duty.

(*3*) Where the revised entry and self-assessment made under sub-sections (1) and (2) results in—

(*a*) any duty short-levied, not levied, short-paid or not paid, then the same may be paid voluntarily by the importer or exporter of such goods along with the interest under section 28AA;
(*b*) duty paid in excess of that payable on such goods or whole of the duty paid, requiring refund, then, such revised entry shall be deemed to be a claim for refund under section 27.

(*4*) The proper officer may,—

(*a*) verify the revised entry and self-assessment made under sub-sections (1) and (2) in cases selected primarily on the basis of risk evaluation through appropriate selection criteria;
(*b*) re-assess the duty leviable on such goods in cases where the self-assessment under sub-section (*2*) is not done correctly.

(*5*) No revision of entry shall be made under this section in the following cases, namely:—

(*a*) cases where any audit under Chapter XIIA or search, seizure or summons under Chapter XIII has been initiated and intimated to the importer or the exporter concerned;
(*b*) cases requiring refund where the proper officer has re-assessed the duty under section 17 or assessed the duty under section 18 or under section 84;
(*c*) any other case which the Board may specify by notification in the Official Gazette.".